STATE OF MICHIGAN IN THE THIRD CIRCUIT COURT FOR THE COUNTY OF WAYNE

WAYNE COUNTY TREASURER, Plaintiff,

v. Case No. [INSERT CASE NUMBER FROM COUNTY] Hon. [INSERT JUDGE NAME FROM COUNTY]

DIEASHA D. DAVIS, Defendant/Claimant. ____/

MOTION FOR EXTENSION OF TIME TO FILE MOTION TO CLAIM REMAINING PROCEEDS

NOW COMES Defendant/Claimant, Dieasha D. Davis ("Claimant"), pursuant to MCR 2.119(F) and this Court's inherent equitable authority, and moves for an extension of time to file her Motion to Claim Remaining Proceeds from the 2019 tax foreclosure sale. The October 1, 2025 deadline established by MCL 211.78t(7) should be extended or tolled because Claimant's inability to meet that deadline resulted entirely from Wayne County's failure to provide the information required by statute, and because enforcing the deadline under these circumstances would violate Claimant's constitutional right to due process.

BACKGROUND

1. On February 12, 2025, Claimant timely filed her Notice of Intent to Claim Interest in Foreclosure Sale Proceeds (Form 6156) with Wayne County Treasurer regarding Parcel 02004687 (19344 Strathcona Drive, Detroit, MI 48203).

2. The statutory deadline for filing such notice was March 31, 2025. Claimant filed nearly two months early.

3. On May 16, 2025, Wayne County acknowledged receipt of Claimant's Notice of Intent and assigned Reference Number 831721WD08GCR.

4. In that acknowledgment letter, Wayne County stated: "Please note that this office will send you an additional notice on or before July 1, 2025 as required by Michigan law with further instructions and actions you must take with the Third Circuit Court to claim any portion of any remaining proceeds that you may be entitled to under MCL 211.78t."

5. MCL 211.78t(7) requires the foreclosing governmental unit to send a "motion notice" to all claimants by July 1, 2025, providing: a. The case number from the original foreclosure judgment; b. Instructions for filing a motion to claim proceeds; c. The deadline for filing such motion (October 1, 2025); d. Information about the sale

proceeds and amounts claimed.

6. Wayne County never sent this required motion notice.

7. Without the case number from the original foreclosure judgment, Claimant could not file her Motion to Claim Remaining Proceeds with this Court.

8. Without information about the sale proceeds and amounts claimed, Claimant could not properly complete the required motion form (Form CC 541).

9. The October 1, 2025 deadline passed while Claimant waited for the information Wayne County was required by law to provide.

10. Claimant's inability to file by October 1, 2025 resulted entirely from Wayne County's failure to comply with MCL 211.78t(7).

LEGAL ARGUMENT

I. EQUITABLE TOLLING APPLIES TO EXCUSE THE LATE FILING

A. Standard for Equitable Tolling

11. "Equitable tolling is appropriate when a plaintiff's failure to meet a legally-mandated deadline unavoidably arose from circumstances beyond that plaintiff's control." Cook v. Statewide Fire Equipment, 234 Mich. App. 237, 243 (1999).

12. Courts apply equitable tolling when: a. The plaintiff exercised reasonable diligence in pursuing the claim; b. The circumstances preventing timely filing were beyond the plaintiff's control; c. The defendant's conduct contributed to the plaintiff's inability to file timely; and d. Applying the deadline would work an injustice.

13. All four factors are present here.

B. Claimant Exercised Reasonable Diligence

14. Claimant filed her Notice of Intent on February 12, 2025—nearly two months before the March 31, 2025 deadline.

15. Claimant did everything the statute required of her at that stage.

16. Claimant then waited for Wayne County to provide the required motion notice, as County had promised in its May 16, 2025 acknowledgment letter.

17. Claimant attempted to obtain the necessary information to file her motion.

18. Claimant has now filed this motion seeking relief as soon as she became aware of the emergency nature of her situation.

19. At every stage, Claimant has acted diligently and in good faith.

C. The Circumstances Were Beyond Claimant's Control

20. MCL 211.78t(7) places the burden on the foreclosing governmental unit to send the motion notice to claimants.

21. The statute does not require or expect claimants to independently research case numbers or gather information the County is required to provide.

22. Claimant could not file a motion without the case number of the original foreclosure judgment.

23. Claimant had no means of obtaining this case number other than through the motion notice County was required to send.

24. Wayne County's failure to send the required notice was entirely beyond Claimant's control.

25. "A party is entitled to equitable relief from a statutory deadline when the defendant's conduct prevented the party from complying with the deadline." Walters v. Snyder, 502 Mich. 1039 (2018).

26. County's conduct—specifically, its failure to send the required notice—prevented Claimant from complying with the deadline.

D. Wayne County's Conduct Contributed to the Inability to File Timely

27. Wayne County's failure to send the required motion notice by July 1, 2025 directly caused Claimant's inability to file by October 1, 2025.

28. Had County complied with its statutory obligation, Claimant would have had the information necessary to file timely.

29. County cannot now benefit from its own statutory violation by asserting that Claimant's motion is untimely.

30. "Courts of equity have long applied the doctrine that a party cannot profit by his own wrongdoing." Haynes v. Neshewat, 477 Mich. 29, 36 (2007).

31. Permitting County to assert untimeliness as a defense when County's own violation caused the delay would allow County to profit from its wrongdoing.

E. Applying the Deadline Would Work an Injustice

32. Claimant owned the foreclosed property from 2010 to 2019.

33. During those nine years, Claimant invested $257,600 in the property through a $20,000 down payment and approximately $237,600 in mortgage payments.

34. When Wayne County foreclosed in 2019, Claimant received nothing.

35. County has held the surplus proceeds for seven years.

36. Claimant timely filed her claim.

37. County acknowledged her claim and promised to send the required information.

38. County then failed to send that information.

39. Barring Claimant's claim due to a deadline she could not meet because of County's statutory violation would be manifestly unjust.

40. It would penalize Claimant for County's wrongdoing.

41. It would allow County to retain property to which Claimant has a superior right.

42. Such a result would violate the constitutional principles that led to the enactment of MCL 211.78t in the first place.

II. WAYNE COUNTY VIOLATED MCL 211.78t(7)

43. MCL 211.78t(7) unambiguously requires the foreclosing governmental unit to send a motion notice to claimants "not later than July 1, 2025."

44. The statute specifies exactly what this notice must contain: - The case number; - Instructions for filing a motion; - The deadline for filing; - Information about sale proceeds and amounts claimed.

45. This is not a discretionary requirement. The statute uses the mandatory term "shall."

46. Wayne County sent no such notice by July 1, 2025.

47. Wayne County violated the statute.

48. This violation had direct consequences: Claimant could not file her motion without the information County was required to provide.

49. County should not be permitted to benefit from its own statutory violation.

III. ENFORCING THE DEADLINE VIOLATES DUE PROCESS

50. The Michigan Supreme Court held in Rafaeli v. Oakland County, 505 Mich. 429 (2020), that taking property in excess of the amount needed to satisfy a debt violates the Takings Clause of the Michigan Constitution.

51. The Legislature responded by enacting MCL 211.78t to provide a mechanism for property owners to recover surplus proceeds.

52. The purpose of MCL 211.78t is to remedy the constitutional violation identified in Rafaeli.

53. If the statute is interpreted or applied in a manner that deprives property owners of their right to surplus proceeds due to the government's own failure to comply with statutory requirements, the statute fails to achieve its constitutional purpose.

54. Due process requires "notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections." Mullane v. Central Hanover Bank & Trust Co., 339 U.S. 306, 314 (1950).

55. The notice requirement in MCL 211.78t(7) is designed to satisfy this due process mandate.

56. When Wayne County failed to send the required notice, it deprived Claimant of due process.

57. Barring Claimant's claim based on a deadline she could not meet due to lack of required notice would perpetuate the due process violation.

58. This Court should not permit such a result.

IV. GOOD CAUSE EXISTS FOR EXTENSION OF TIME

59. Under MCR 2.119(F), this Court may extend time periods "for good cause shown."

60. Good cause clearly exists here: a. Claimant filed her initial Notice of Intent timely; b. Claimant did everything required of her; c. Wayne County violated its statutory

obligation; d. County's violation prevented Claimant from filing timely; e. Claimant has a meritorious claim to surplus proceeds; f. Claimant invested $257,600 in the foreclosed property; g. County has held the proceeds for seven years; h. No prejudice would result to County from hearing the claim on the merits; i. Claimant is now facing eviction while County holds her equity.

61. These circumstances constitute compelling good cause for extension.

V. THE COURT HAS AUTHORITY TO GRANT RELIEF

62. This Court has inherent equitable authority to prevent unjust results. Michigan Supreme Court v. Mich. Judges Ass'n, 468 Mich. 398, 404 (2003).

63. MCL 211.78t does not expressly state that the October 1 deadline is jurisdictional or that failure to meet it results in forfeiture of all rights.

64. Statutes should be interpreted to avoid unconstitutional results. In re Petition of Attorney General, 257 Mich. App. 505, 514 (2003).

65. Interpreting MCL 211.78t to bar claims when the claimant's inability to file timely resulted from the government's statutory violation would produce an unconstitutional result.

66. This Court should interpret the statute to allow equitable tolling under these circumstances.

67. Alternatively, this Court has authority under MCR 2.119(F) to extend the deadline for good cause.

VI. NO PREJUDICE TO WAYNE COUNTY

68. Wayne County will suffer no prejudice from adjudication of Claimant's claim on the merits.

69. The proceeds have been held for seven years. A brief additional delay while the claim is heard causes no harm.

70. County acknowledged Claimant's claim in May 2025, so it has been on notice of her interest.

71. Adjudicating the claim allows County to finally distribute proceeds and close this matter.

72. By contrast, refusing to hear the claim would cause severe prejudice to Claimant: a. Loss of her equity investment of $257,600; b. County retention of property to which

Claimant has a superior right; c. Imminent eviction from her current rental home; d. Loss of her business; e. Homelessness.

73. The balance of prejudice overwhelmingly favors hearing the claim.

CONCLUSION

Dieasha Davis did everything right. She filed her Notice of Intent nearly two months early. She complied with every requirement of MCL 211.78t. She waited for Wayne County to send the information it was required by law to provide.

Wayne County did not comply. County violated MCL 211.78t(7) by failing to send the required motion notice by July 1, 2025. Without the case number and other information County was required to provide, Claimant could not file her motion by October 1, 2025.

Claimant should not be penalized for Wayne County's statutory violation.

Equitable tolling applies. The circumstances preventing timely filing were entirely beyond Claimant's control and resulted directly from County's wrongdoing. Good cause exists for extension of time.

Moreover, barring Claimant's claim due to a deadline she could not meet because County failed to provide required notice would violate due process and frustrate the constitutional purpose of MCL 211.78t.

This Court has the authority and the obligation to grant relief.

Claimant invested $257,600 in the foreclosed property over nine years. County has held the proceeds for seven years. Claimant is now facing eviction from her rental home while County sits on her equity.

Justice requires that Claimant's claim be heard on the merits.

WHEREFORE, Claimant respectfully requests this Honorable Court:

1. Grant this Motion for Extension of Time;

2. Apply equitable tolling to the October 1, 2025 deadline;

3. Find good cause for extension under MCR 2.119(F);

4. Accept Claimant's Motion to Claim Remaining Proceeds as timely filed;

5. Schedule an expedited hearing on the merits of Claimant's surplus proceeds claim;

6. Grant such other and further relief as this Court deems just and equitable.

Respectfully submitted,

___________________________________ DIEASHA D. DAVIS 1221 Bowers Street, Suite 2141 Birmingham, MI 48012 Telephone: (248) 376-4550 Pro Se

Dated: February 3, 2026